

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/24/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL0000252

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: SHEEDEH LYTZ

and

RESPONDENT: JASON LYTZ

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD/SPOUSAL SUPPORT;
ATTORNEY’S FEES

RULING

This matter is set for hearing on Respondent/Father’s 4/29/2026 Request for Order (“RFO”) re: modification of the Court’s 6/13/2025 Order regarding child support for the benefit of the parties’ two children, Izabella (DOB 10/14/2014) and Kellan (DOB 2/22/2016), for spousal support based upon an increase in Mother’s income, and for attorneys’ fees and costs as a sanction per Family Code §271. With his RFO, Father filed his supporting Declaration, an Income & Expense Declaration (“I&E”) and lodged his 2024 and 2025 income tax returns under seal.

Petitioner/Mother filed a Responsive Declaration on 7/13/2026, Memorandum of Points and Authorities, I&E, and Declaration of John Cuerva in Support of Petitioner’s Attorneys’ Fees Request.

On 7/16/2026, Father filed a Reply Declaration, Reply Memorandum of Points and Authorities, and Support Calculations with supporting Declaration.

Child Support

Father seeks a modification of guideline child support based on Mother’s increased income and new deductions related to her purchase of a home. Mother agrees to a guideline child support modification, and the Court finds her increased income and new tax deductions constitute a material change of circumstances warranting modification of the existing guideline child support order. The Court has reviewed the parties’ respective financial information, as well as their proposed XSpouse calculations, and prepared its own Xspouse calculation, attached hereto. The calculation relies on the following assumptions: the parties’ time-share is 50%-50%; both parties file taxes as Head of Household and claim 2 exemptions. Father’s monthly base salary is \$25,000; Mother’s monthly base salary is \$15,417. Father and Mother have \$1,307 and \$431 per

month, respectively in other taxable income (interest and dividends). Father pays \$1,307/month and Mother pays \$653/month for health insurance. Mother has \$500/month in adjustments for her flexible health plan and transit. The Court estimates Mother's property tax deduction at \$2000/month; and she has a mortgage interest deduction of \$4,064/month and charitable contribution of \$200/month.

The attached Xspouse calculation sets guideline child support payable from Father to Mother of \$645/month. In addition, each party shall pay bonus child support (or receive a credit) on any income above the amount ascribed to each parent on the Xspouse calculation. The Court has prepared bonus tables for each party; however, due to the number of pages, the tables are not attached to the tentative ruling but will be attached to the Court's final order. The Court does not include add-on expenses in the calculation because it is unclear that the amounts for childcare, etc. are fixed or changing. Unless the parties agree otherwise, those should be dealt with after such costs are incurred and paid.

With regard to the cap on the number of child care hours and the amount payable per hour, that limitation was superseded by the Court's 6/13/2025 Findings and Order After Hearing, which clearly states that the parties are to share such expenses 50%-50%. Therefore, as to child support, the Court orders as follows:

1. Effective as of 5/1/2026, Father shall pay to Mother as and for guideline child support the sum of \$645/month (\$243/month for the benefit of Izabella and \$402/month for the benefit of Kellan), payable on or before the day of each month.
2. To the extent that Father's income exceeds \$25,000/month, Father shall pay bonus child support on such income in excess of \$25,000 in accordance with the bonus table attached to the Xspouse calculation as Exhibit "A."
3. To the extent that Mother's income exceeds \$15,417/month, Father shall receive a credit against his child support payment for the income Mother receives in excess of \$15,417, calculated in accordance with the bonus table attached to the Xspouse calculation as Exhibit "B."
 - a. Unless the parties agree otherwise, the party whose income exceeds the amount designated in the attached Xspouse calculation shall report to the other party, and provide verification of any such excess income, within 15 days of receiving such additional income. Father shall pay bonus child support to Mother within 30 days of receiving such income. In the event Mother has bonus income, Father will receive a credit, which amount shall be deducted from his next monthly child support payment.
4. Child support shall continue until (1) each child reaches the age of 18, or if still a full-time student in high school at age 18, until the children reaches age 19 or graduates from high school, whichever first occurs; (2) the child dies; or (3) the child is emancipated. The amount of child support is modifiable if there is a material change of circumstances for either party.

5. In addition, per Family Code §§4061(b) and 4062, the parties shall share equally share (50%-50%) all reasonable, uninsured medical expenses and dental expenses incurred on behalf of the children, as well as childcare costs related to either party's employment or reasonably necessary education or training for employment skills.
6. Father shall pay the sum of \$2,282.80 in childcare expenses owing to Mother no later than 8/21/2026.

The parties are ordered to comply with the provisions of Family Code §4063 in seeking reimbursement for uninsured medical and dental expenses. A copy of the NOTICE OF RIGHTS AND RESPONSIBILITIES – Health-Care Costs and Reimbursement Procedures is attached to the Order After Hearing.

Spousal Support

Father requests that his permanent spousal support obligation be reduced to zero, or alternatively, for the Court to make another reduction in his obligation due to an increase in Mother's income and the fact that she now has property tax and mortgage interest deductions as a result of her buying a house. Although the Court has discretion to make a modification to permanent spousal support, the Court is not persuaded that the facts presented warrant such a modification. Unlike the issue of child support, which looks to the parties' current income to ensure that both are contributing to meet the needs of the children, permanent spousal support takes account of a much larger range of issues, as reflected in the Family Code §4320 factors, all of which have been considered by the Court, including the fact that this was a long-term marriage of 10 ½ years, that Mother was out of the work for years raising the parties' children. Moreover, it will continue to make Mother years to meet the marital standard of living.

Last year Father's spousal support obligation was reduced because his income dropped by 25%. Father currently has the same ability to pay spousal support as he did as of the 2025 modification. There is no hardship to him in continuing to pay the support he was ordered to pay after the Court's full consideration of the §4320 factors. Mother has done exactly what was expected of her; she returned to the work force after a number of years of not working outside the home, secured a job practicing law, found a better paying job and has received an increase in pay. The Court will not penalize her for doing so; she is entitled to rely upon continued receipt of spousal support payments to pay her monthly expenses.

Taking into account the fact that this was a long-term marriage of 10 and ½ years, that Mother devoted most of her time during the marriage to raising the parties' children, that there has been no further change in Father's ability to pay, the Court finds reducing Mother's spousal support payments would place an undue hardship on her in meeting her monthly expenses. The balance of hardships clearly weighs in favor of Father continuing to meet his obligation to pay Mother pay spousal per the Court's 6/13/2025 Findings and Order After Hearing.

Having reviewed and considered all of the parties' written submissions, including their lengthy §4320 analyses, the Court orders as follows:

7. Father's requests to set spousal support at zero, or alternatively, to further reduce his monthly spousal support payments, are denied.

Attorneys' Fees & Costs

Father's Request for Fees & Costs per Family Code §271.

Father asks for attorneys' fees and costs per Family Code §271. He contends that Mother failed to comply with notification terms set out in the parties' Marital Settlement Agreement ("MSA," merged into the Judgment entered 12/5/2024) with regard to her change of employment, new address, and purchase of home with related mortgage interest and property tax deductions. Given the language of the cited MSA provisions and the evidence produced by Mother, the Court is not satisfied that any of Mother's actions support an award of §271 fees. Therefore:

8. Father's request for attorneys' fees and costs per Family Code § 271 is denied.

Mother's request for attorneys' fees and costs per Family Code §§2030 and 271.

Mother requests attorneys' fees of \$10,000 pursuant to §§2030 and 271. The Court does not find that Father's actions support an award of § 271 fees, and further finds Mother can pay her own attorneys' fee and costs.

9. Mother's request for attorney's fees is denied.

SO ORDERED.

The Court will prepare the order

*Any party who disagrees with the Court's tentative ruling and wishes to have oral argument must notify the Court at (415) 444-7046 and opposing counsel (or if the opposing party is self-represented, notice must be given directly to the opposing party) of their intent to appear at the hearing for oral argument **by 4:00 pm on the court day before the hearing**, as required by Marin County Superior Court Family Law Local Rules 7.12(B) and (C). Notice may be given by telephone or in person. Absent proper notice, no oral argument will be permitted. If no request for oral argument is made, the tentative ruling will become the order of the Court.*

Unless otherwise ordered by the Court, persons who requested oral argument must appear for the hearing in person or remotely via Zoom, in accordance with the Court website guidelines. If appearing remotely via Zoom (video or telephone), you are responsible for ensuring you have adequate connectivity; the Court may proceed in a party's absence if technical issues arise. Proper Zoom etiquette and courtroom decorum are required, and failure to comply may result in the hearing being halted and an order to appear in person being made.

2026

Xspouse 2026-1-CA

Monthly Figures

Fixed Shares	Jason	Sheedeh	Monthly Figures		Cash Flow	
Number of children	1	1	2026		Guideline	Proposed
Percent time with NCP	49.99%	49.99%			Combined net spendable	28062
Filing status	HH/MLA	HH/MLA	GUIDELINE		Percent change	0%
Number of exemptions	2	2	Nets (adjusted)		Jason	1%
Wages and salary	25000	15417			Payment cost/benefit	-645
Self employed income	0	0	Jason	15683	Net spendable income	15037
Other taxable income	1175	431	Sheedeh	12380	Change from guideline	0
TANF CS received	0	0	Total	28063	% of combined spendable	54%
Other nontaxable income	0	0	Support		% of saving over guideline	0%
New spouse income	0	0	Addons	0	Total taxes	9185
Employee 401-k contribution	0	0	Guideln CS	645	Dep. exemption value	0
Adjustments to income	0	500	Marin SS	0	# withholding allowances	0
SS paid prev marriage	0	0	Total	645	Net wage paycheck	15868
CS paid prev marriage	0	0			Sheedeh	
Health insurance	1307	653	Settings changed		Payment cost/benefit	645
Other medical expenses	0	0	Proposed		Net spendable income	13025
Property tax expenses	0	2000	Tactic 9		Change from guideline	0
Ded interest expense	0	4064	CS	597	% of combined spendable	46%
Contribution deduction	0	200	SS	0	% of saving over guideline	0%
Misc tax deductions	0	0	Total	597	Total taxes	2815
Qualified business income deduction	0	0	Saving	189	Dep. exemption value	0
Required union dues	0	0	Releases	-1	# withholding allowances	0
Mandatory retirement	0	0			Net wage paycheck	10451
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

Jason pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		50 - 50	0	0	0 Jason	645 Jason	645 Jason
Izabella	2014-10-14	49 - 51	0	0	0 Jason	243 Jason	243 Jason
Kellan	2016-02-22	50 - 50	0	0	0 Jason	402 Jason	402 Jason

Superior Court of California
County of Marin

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/24/26 TIME: 9:00 A.M. DEPT: E CASE NO: FL0002656

PRESIDING: HON. BETH S. JORDAN

REPORTER:

CLERK: S. BOND

PETITIONER: JOSHUA REDNER

and

RESPONDENT: STELA LLUSHA

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – CUSTODY/CHILD
SUPPORT/VISITATION
2) CASE PROGRESS CONFERENCE

RULING

This matter is set for hearing on Petitioner/Father's 4/22/2026 Request for Order ("RFO") re: custody/visitation regarding the parties' daughter, Skyla (DOB 8/14/2019), child support, and attorneys' fees and costs. Together with his RFO, Father filed a supporting Declaration and an Income & Expense Declaration ("I&E").

Mother filed a Responsive Declaration on 7/13/2026, together with an I&E and Respondent's Statement of Support Calculations. She also lodged her 2024 and 2025 State and Federal Income Tax Returns under seal.

On 7/17/2026, Father filed a Statement of Agreement/Disagreement with the Family Court Services Recommendation, Memorandum of Points and Authorities re: Drug Testing, Petitioner's Support Calculations with supporting assumptions, and Reply Declaration. Father also lodged his 2024 and 2025 income tax returns, with June 2026 paystub, and 7/18/2026 random drug test results under seal.

Child Custody/Visitation

There are no prior custody/visitation orders in this case. Father requests the parties share joint legal and physical custody of Skyla and a structured transition plan leading to a 2-2-5-5 schedule. Father states that while the parties lived together as a family, he was actively involved in Skyla's daily care, schooling and activities. He took care of enrolling Skyla in preschool through first grade at Old Mill School, enrolled in her extracurricular activities and transported her to and from school and activities. However, Father says that since the parties ceased living together in October 2024, Mother denies him access to Skyla and restricts his time and communications with Skyla, without explanation. His time with Skyla has averaged two hour to hour and a half